

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: July 16, 2026

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1.	Kumar v. Children's Hospital of Orange County 23-1361438	(Moot)
2.	Doe 1 v. Axis Financial Solutions, Inc. 20-11655934	Pro per defendant Steven Prado's ("Prado") unopposed Motion to Set Aside Default Judgment ("Motion") is DENIED .

		As an initial note, no proof of service was filed showing service of the Motion on plaintiffs Jane Doe 1 and Jane Doe 2 ("Plaintiffs" together). As no opposition was filed, it is unclear if Plaintiffs were served with the Motion and chose not to oppose, or if there was no service. Prado moves for relief under <i>Civ. Proc. Code § 473.5</i>. While that section permits the Motion, it must be filed within the earlier of either two years from entry of default judgment against Prado, or 180 days after service of written notice of the default or default judgment being entered. Here, default judgment was entered on 12/13/22 and Prado filed the Motion on 04/29/26. As the Motion was filed over 16.5 months beyond the filing deadline, it is not timely and relief under <i>Civ. Proc. Code § 473.5</i> cannot be granted. Even if the Motion had been timely, which again it was not under <i>Civ. Proc. Code § 473.5</i>, Prado has provided no actual evidence aside from his statement, that he was not served with the complaint or other pleadings in this action. This is not sufficient to support the Motion or for the court to grant the requested relief. Based on the above, the Motion is denied without prejudice. <i>Prado to give notice.</i>
3.	Williams v. Southern California Edison 23-1300300	The motion to reopen discovery by plaintiffs Kent Williams and Jodene Williams is DENIED, for the reasons set forth herein. The Court may re-open discovery and allow for further discovery proceedings on the motion of any party. (<i>Code Civ. Proc., § 2024.050(a)</i>.) The motion must be accompanied by a meet and confer declaration showing a reasonable attempt at reaching an informal resolution. (<i>Ibid.</i>) Initially, the meet and confer falls well short of a good faith meet and confer. The purpose of the meet and confer requirement is to encourage the parties to work out their differences informally to avoid the necessity for a formal order and in turn, lessen the burdens upon the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. (<i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293.) Here, plaintiffs' counsel sent an email to defense counsel requesting a stipulation to reopen. Defense counsel responded with a proposal that would have resolved half of the motion, if accepted. However, plaintiffs' counsel did not respond and instead filed the motion two days later. As to the merits of the motion, plaintiffs argue that they seek to reopen discovery to take the deposition of a former employee of defendant Southern California Edison Company (SCE) and to serve discovery requesting any <i>subrosa</i> video SCE has obtained of the plaintiffs. Plaintiffs have failed to meet their burden. "In law and motion practice, factual evidence is supplied to the court by way of

declarations.” (*Calcor Space Facility, Inc. v. Superior Ct.* (1997) 53 Cal.App.4th 216, 224) Other than describing documents in the Court’s file, authenticating a 2021 preservation letter sent to Mr. Mora., the declaration only contains the conclusory statement that good cause exists to reopen discovery because of the trial continuance. Plaintiff’s counsel also opines, without explanation, that there will be no prejudice. (See Miles Decl. ¶¶14-15) Counsel’s declaration is insufficient.

Further, the Court finds that the factors set forth in *Code Civ. Proc. § 2024.050(b)* do not support reopening discovery.

As to the deposition of Mr. Mora, plaintiffs were aware of Mr. Mora in September 2021 when they sent him the preservation letter. (Exhibit E to Miles Decl.) There is no explanation as to why they did not depose him during first two years of litigation. Further, there is no evidence as to why his testimony would be necessary to this litigation. To the extent it relates to preservation of the chain, the Joint Statement at ROA 181 addresses handling of the chain and states plaintiffs’ expert twice inspected the chain. To the extent plaintiff wants to ask about video of the incident, this matter was addressed in the deposition of Blaine Deojay, the PMQ for SCE. (Barrett Decl., Exh. A) As a result, even if plaintiffs had decided to depose Mr. Mora during the two years before discovery closed, it appears his testimony would have been of marginal value.

The next item of discovery plaintiffs seek is to ask SCE to produce any *subrosa* video depicting them which it may have obtained since discovery closed in February 2025. Plaintiff does not explain why it did not make a motion to reopen discovery to obtain *subrosa* video during the 14 months between February 2025 and the April 20, 2026 trial date. Plaintiffs have not been diligent in seeking this discovery. Further, while plaintiff claims the discovery is necessary to avoid surprise at trial, such is not the case. Presumably, Plaintiffs are the most knowledgeable about their medical condition and what activities they were, or were not, able to perform in light of their alleged injuries. Thus, they would not be “surprised” or prejudiced by being shown video footage of their own conduct on particular days.

Plaintiffs also argue that allowing them to conduct discovery as to *subrosa* video and Mr. Mora will resolve any motions to quash at trial. This is speculative and counter intuitive. Even if SCE voluntarily produced the *subrosa* video (assuming such exists) in August 2026, there would be nothing stopping SCE from obtaining further *subrosa* video thereafter. Plaintiffs would then likely serve the same notice to appear at trial with the same document demands for the May 2027 trial. It is then reasonable to assume SCE would file the same motion to quash.

While the court acknowledges the length of time that will have elapsed between the April 2026 and May 2027 trial dates, and that allowing this discovery would unlikely result in delay of the trial, the Court does

		not find these factors outweigh the lack of diligence and lack of necessity. Accordingly, the motion is DENIED. <i>SCE is ordered to give notice of this ruling.</i>
4.	The Eli Home, Inc. v. Tatarian et al. 24-1370984	Defendant/Cross-Complainant Sarkis Tatarian Trustee Under the 2021 Sarkis Tatarian Separate Property Revocable Trust's ("Sarkis") Motion to Compel Payment of Arbitration Deposits ("Motion") is GRANTED in part and DENIED in part. Sarkis requests the court issue a ruling determining proper apportionment of arbitration deposits so the parties can proceed with arbitration. Sarkis argues the deposits should be apportioned in a pro rate amount equally among the five parties participating in the arbitration, which would result in each paying 1/5 of the deposit. (<i>Civ. Proc. Code § 1284.2.</i>) The subject arbitration agreement is silent as to the division of the expenses and fees. Defendants Marcus & Millichap Real Estate Investment Services, Inc., Arash Mobin, and Adam P. Christofferson ("MMRE" together) argue the fees should be apportioned as to 1/3 the amount for MMRE, Sarkis, and Eli Home, Inc. The latter has not responded to this Motion. MMRE put forth the rules/practices of the arbitration company ADR Services, Inc. ("ADR"), which is overseeing the arbitration. ADR's "standard practice is to allocate fees by firm (or aligned party group), rather than by individual parties. . ." (Borden Dec. ¶ 3, Ex. A.) Both the first amended complaint ("FAC") and cross-complaint ("XC") indicate Mobin was the real estate agent/broker associate with Millichap as the broker and Christofferson as the broker of record on the underlying real estate transaction. (FAC ¶¶ 23-24, 39; XC ¶¶ 45, 49-50, 57.) Mobin and Christofferson are alleged as agents of Millichap and thus the liability appears to be the same. (<i>Bus. & Prof. Code §§ 10010.5 and 10032.</i>) MMRE are also represented by the same counsel. As the allegations against MMRE, liability, and counsel are the same, and as the ADR practice is division amongst the aligned groups, the court finds the 1/3 allocation to be appropriate. Although MMRE argues the Motion should be denied outright, this may lead to ongoing issues related to starting arbitration. As such, the court will issue its ruling covering the issues. The motion is GRANTED as to the court issuing a ruling regarding apportionment of the fees but DENIED as to the 1/5 allocation. The court finds the 1/3 allocation is appropriate for the initial deposits. The court also notes that this order only covers apportionment for the initial arbitration deposits to permit arbitration to proceed. The court leaves ultimate apportionment of arbitration fees and costs for the arbitrator to determine at his discretion. <i>Sarkis to give notice.</i>

5. Cicale v. LoanDepot.com, LLC
26-1544409

Before the Court are: (1) the Motion to Dismiss or Stay on Forum Non Conveniens Grounds ("Motion 1") and (2) the Demurrer to First Amended Verified Complaint ("Motion 2"), both filed on 4/22/26 by Defendant loanDepot.com, LLC ("Defendant").

Motion 1: The Motion to Dismiss

On Motion 1, Defendant asserts that this action should be dismissed or stayed, to instead be addressed in Arizona, on forum non conveniens grounds.

A trial court considering a *forum non conveniens* issue engages in a two-step process, the first of which is to determine whether a suitable alternative forum exists. Where there is a suitable alternative forum, the court proceeds to the next step, consideration of the private interests of the parties and the public interest in keeping the case in California. (*National Football League v. Fireman's Fund Ins. Co.* (2013) 216 Cal.App.4th 902, 917.) The parties here do not dispute that Arizona is a suitable alternative forum but disagree as to whether the case should remain in California.

There is ordinarily a strong presumption in favor of a plaintiff's choice of forum, although "less deference" is given to foreign plaintiffs. (*Stangvik v. Shiley Inc.* (1991) 54 Cal.3d 744, 753.) Here, Plaintiff West Capital Lending, Inc. ("WCL") is a California entity. (FAC ¶ 15.) Defendant is also based in California. (FAC ¶ 16.) The entire action is also based on California statutes reflecting California public policy. Under the circumstances shown here, the Court does not find that the requested relief is warranted. The Motion is therefore **DENIED**.

Defendant's Request for Judicial Notice is **GRANTED** under *Ev. Code* §452(c) as to the existence of the records, but not as to the truth of facts asserted therein. (*Fontenot v. Wells Fargo Bank, NA* (2011) 198 Cal.App.4th 256, 264; *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482.)

Motion 2: The Demurrer

Defendant argues that the entire action is based on its litigation activity in Arizona and thus barred by the litigation privilege. But the action is not on its face so limited, as it also asserts that Defendant violated *Bus. & Prof. Code* §16600 *et seq.* by requiring the individual plaintiffs to sign contracts with restrictive covenants and thus limit competition with WCL. (See *e.g.* FAC ¶¶ 47, 54.) In addition, courts have found exceptions to the litigation privilege based on irreconcilable conflicts between the privilege and other coequal state laws. (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1246; *People v. Persolve, LLC* (2013) 218 Cal.App.4th 1267, 1274; *People v. Potter Handy, LLP* (2023) 97 Cal.App.5th 938, 955.) Defendant has not shown that such an exception could not apply here.

		Defendant also argues that <i>Bus. & Prof. Code §16600.1</i> and <i>§16600.5</i> do not apply to the claims of individual plaintiffs who signed the relevant agreements prior to 1/1/24. But under <i>§16600.5(a)</i>, any “contract that is void under this chapter is unenforceable regardless of where and when the contract was signed.” In addition, Defendant is alleged to have violated <i>§16600.5</i> through conduct occurring after 1/1/24. (FAC ¶¶ 37, 42, 43.) Defendant also argues that claims asserted here by the individual Plaintiffs should have been asserted as compulsory counterclaims in Arizona, if the claim arises out of the transaction or occurrence that is the subject matter of the opposing party's claim, and does not require adding another party over whom the court cannot acquire jurisdiction. (ROA 80, at pp. 14-15.) But whether some or all of the individual Plaintiffs are currently parties to an Arizona action brought by Defendant, whether any counterclaim they might present would require inclusion of WCL, and whether the Arizona court could acquire jurisdiction over WCL, are beyond the scope of demurrer. Finally, Defendant argues that <i>Bus. & Prof. Code §16600 et seq.</i> and <i>§17200</i> cannot apply here, because the individual plaintiffs work in and reside in Arizona. However, <i>§16600.5</i> expressly applies “regardless of whether the contract was signed and the employment was maintained outside of California.” In addition, under <i>Bus. & Prof. Code §16600.1(c)</i>, “[a] violation of this section constitutes an act of unfair competition within the meaning of Chapter 5 (commencing with Section 17200).” For purposes of demurrer, Defendant has not established that the claims at issue are nonetheless necessarily barred. The Demurrer is therefore OVERRULED. Defendant is to file its Answer to the FAC within 10 days, and give notice of these rulings.
6.	Ahmad v. Emberson 25-1505471	A) Demurrer Defendant Tom Emberson’s (“Defendant”) demurrer to plaintiffs Maryam Ahmad and Lawrence Waldburger’s (“Plaintiffs” together) First Amended Complaint (“FAC”) is SUSTAINED in part and OVERRULED in part. Overruled as to causes of action (“COA”) nos. 3 and 8. Sustained as to COA no. 6. The court first notes Defendant’s demurrer is improper as it does not correctly identify the COA Defendant is demurring to. The court will proceed on the merits. Defendant demurs COA nos. 3, 6, and 8 due to lack of sufficient facts. (<i>Civ. Proc. Code § 430.10(e)</i>). Defendant also demurs to all COA based on uncertainty as the FAC “implicates” the statute of limitations. 1) <i>Insufficiency of Fact</i> a) COA No. 3 – Negligence Per Se

“ “The negligence per se doctrine is codified in Evidence Code section 669, subdivision (a), under which negligence is presumed if the plaintiff establishes four elements: (1) the defendant violated a statute, ordinance, or regulation; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.” [Citation.] “The burden is on the proponent of a negligence per se instruction to demonstrate that these elements are met.” “ (Taulbee v. EJ Distribution Corp. (2019) 35 Cal. App. 5th 590, 596.)

Plaintiffs alleged Defendant as a landlord owed a duty pursuant to Civ. Code §§ 1941.1 and 1941.3. (FAC ¶ 13.) Plaintiffs alleged sufficient facts to support violations of Civ. Code § 1941.1 and injuries related thereto. (FAC ¶¶ 20-24, 29-35, 42-43, 39-41, 44-45.) Plaintiffs alleged no facts to support a violation of Civ. Code § 1941.3.

Plaintiffs have pled sufficient facts. The demurrer is **OVERRULED** as to this COA.

b) COA No. 6 – Constructive Eviction

“ “A constructive eviction occurs when the acts or omissions ... of a landlord, or any disturbance or interference with the tenant's possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which they were leased, or has the effect of depriving the tenant for a substantial period of time of the beneficial enjoyment or use of the premises.” [Citations.] Abandonment of premises by the tenant within a reasonable time after the wrongful act of the landlord is essential to enable the tenant to claim a constructive eviction [Citation.] Failure to repair and keep the premises in a condition suitable for the purposes for which they were leased has been held to constitute eviction.” (Stoiber v. Honeychuck (1980) 101 Cal. App. 3d 903, 925-26.)

Plaintiffs alleged Defendant's failure to repair dangerous and uninhabitable conditions substantially interfered with Plaintiffs' ability to safely and reasonably reside in the Property. (FAC ¶ 112.) The conditions rendered the Property unfit for occupancy and Plaintiffs were forced to vacate the Property on 2/10/26. (FAC ¶¶ 113-114.) However, Plaintiffs also alleged Defendant filed an unlawful detainer action in which Defendant received a judgment and Plaintiffs were evicted from the Property pursuant to the judgment on 02/10/26. (FAC ¶¶ 55-57.) Eviction through legal court order is not the same as Plaintiffs being forced to vacate the Property due to it being unfit.

Plaintiffs have not pled sufficient facts, and the demurrer is **SUSTAINED** with leave to amend as to this COA.

c) COA No. 8 – Intentional Infliction of Emotional Distress

The elements to a claim for Intentional Infliction of Emotional Distress are, “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (*Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Stoiber v. Honeychuck* (1980) 101 Cal. App. 3d 903, 921.)

Plaintiffs alleged Defendant knowingly allowed hazardous and dangerous conditions to persist over an extended period of time and refused to properly repair the issues despite repeated notice. (FAC ¶¶ 17-47; 124.) Defendant also wrongfully withheld, and continues to withhold, Plaintiffs’ personal property after Plaintiffs’ removal from the Property. (FAC ¶¶ 58-62, 124.) Plaintiffs suffered severe emotional distress, including anxiety, stress, disruption to daily life, fear for their safety, and emotional harm associated with unsafe living conditions and the loss and withholding of their property. (FAC ¶¶ 64, 126.)

Plaintiffs have sufficiently pled this COA at least regarding the withholding of Plaintiffs’ property, refusal to return Plaintiffs’ property, and demand for money as a condition for access to the property. Defendant abused his position as owner/landlord of the Property to lock Plaintiffs’ out and prohibit them from accessing/recovering their property. Plaintiffs have not sufficiently pled facts to support this COA regarding the issues related to the Property as there are no allegations Defendant was aware of these issues prior to them occurring and that Defendant had the intention of causing, or reckless disregard of the probability of causing, emotional distress due to the property issues.

The two year statute of limitations period does not bar this COA. (*Civ. Proc. Code § 335.1; Wassmann v. S. Orange Cnty. Cmty. Coll. Dist.* (2018) 24 Cal. App. 5th 825, 853.)

Plaintiffs have pled sufficient facts, and the demurrer is **OVERRULED** as to this COA.

2) Uncertainty – Statute of Limitations

The Complaint states specific dates of incidents which occurred between 02/03/24 and 03/26/26. As the complaint was filed on 08/22/25, the dates of the identified incidents all fall within the statute of limitations period. While Defendant argues the FAC identifies

ongoing issues that suggest statute of limitations violations, a demurrer cannot be sustained on statute of limitations unless it is clear from the allegations the limitations period has passed, it is not enough that they might be time-barred. (*Comm. for Green Foothills v. Santa Clara Cnty. Bd. of Supervisors* (2010) 48 Cal. 4th 32, 42.)

The demurrer is **OVERRULED** as to the statute of limitations argument.

B) Motion to Strike

Defendant's motion to strike punitive damages is **DENIED**.

Defendant brings this motion pursuant to *Civ. Proc. Code § 436* and *Civ. Code § 3294*. Regarding punitive damages under *Civ. Code § 3294*:

"(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. . ." (*Civ. Code § 3294*.)

It is not sufficient to allege merely that a defendant "acted with oppression, fraud or malice." A plaintiff must allege specific facts showing that defendant's conduct was oppressive. (*Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042; *Anschutz Entertainment Group, Inc. v. Snapp* (2009) 171 Cal.App.4th 598, 643.) There are no allegations of fraud requirements of *Civ. Code § 3294*, so only malice and oppression are relevant.

"'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*Civ. Code § 3294(c)(1)*.)

"'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (*Civ. Code § 3294(c)(2)*.) "Despicable conduct" is conduct that is so "vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715.)

Although the Property conditions allegations lack a showing of intent by Defendant for those Property conditions to occur, Plaintiffs alleged they repeatedly notified Defendant of the need for repair, which Defendant failed and refused to do, and which permitted the conditions to continue and worsen, resulting in damages to Plaintiffs. (FAC ¶¶ 52-54.) The allegations of intentional refusal to repair the Property, which resulted in damages to Plaintiffs, support both the malice and oppression prongs. Further, the allegations regarding Defendant keeping Plaintiffs' personal property and refusing Plaintiffs access to

		their personal property without payment do rise to the level of intention conduct with disregard to Plaintiffs' rights over their personal property (malice). Additionally, keeping and requiring Plaintiffs to pay money to access Plaintiffs' personal property would qualify as despicable conduct that subjects Plaintiffs to cruel and unjust hardship (oppression). Plaintiffs have pled sufficient facts to support punitive damages. The motion to strike is DENIED. <i>Moving party to give notice.</i>
7.	Sheddan v. Willhoit 25-1526158	Before the Court is a demurrer and motion to strike filed by defendants Nicola Willhoit ("Willhoit"), Baron Willhoit ("Baron") and The W Collection, Inc. ("W Collection") (collectively, Defendants) on the complaint of plaintiff Natalya Sheddan (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED with 20 days' leave to amend on the claims for violation of the Consumer Legal Remedies Act, <i>Civil Code section 1750 et. seq.</i> (CLRA), breach of implied warranty of habitability and public nuisance, but otherwise OVERRULED. The motion to strike is DENIED. I. Demurrer <i>A. Meet and Confer Requirement</i> Defendants have satisfied their obligation to meet and confer in accordance with <i>Code of Civil Procedure section 430.41, subdivision (a)</i> and have filed an appropriate declaration in accordance with <i>Code of Civil Procedure section 430.41, subdivision (a)(3)</i>. (ROA 29–Declaration of Oliver P. Lasley ¶¶ 2-4.) <i>B. Legal Standard</i> A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (<i>Code of Civ. Proc. § 430.10, subd. (e).</i>) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (<i>Crowley v. Katleman</i> (1994) 8 Cal. 4th 666, 672.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (<i>Del E. Webb Corp. v. Structural Materials Co.</i> (1981) 123 Cal. App. 3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) <i>C. Entire Complaint</i> Defendants argue the entire complaint fails because they were not parties to the lease and cannot be liable for its alleged breach. This

argument fails because Plaintiff alleges more than breach of the lease terms and/or breach of landlord duties. Plaintiff also alleges breach of fiduciary duty, professional negligence, fraud, conversion, interference with contract, negligence, etc. arising out of Defendants' role as the real brokers who represented both parties in the lease transaction and property managers throughout the lease term. (Compl. pp. 2-3, 13-14, 24.) Though some claims are not appropriately alleged against them, a general demurrer to the entire complaint is improper.

D. Constructive fraud (3rd COA - Willhoit, W Collection)

The elements of the cause of action for constructive fraud are: (1) fiduciary relationship; (2) nondisclosure (breach of fiduciary duty); (3) intent to deceive, and (4) reliance and resulting injury (causation). (*Younan v. Equifax Inc.* (1980) 111 Cal.App.3d 498, 517, fn. 14.)

Plaintiff alleges Willhoit and W Collection owed fiduciary duties to Plaintiff to disclose material facts as the real estate brokers who represented both Plaintiff and the Landlord in the lease transaction. (Compl.) Plaintiff alleges Willhoit and W Collection concealed facts regarding leaks, mold and asbestos and her self-dealing in financial transactions, deceiving Plaintiff and causing reliance to her detriment. (Compl. pp. 2:21-22, 13:23-27, 20:17-21.) These facts are sufficient.

Defendants argue "Ms. Willhoit reasonably relied on the landlord's representations that the repairs and remediation were completed," *i.e.*, "Ms. Willhoit [] reported the suspected issues to the property owner, who retained licensed contractors and paid for the repairs and remediation. She had no reason to believe that any representations made regarding repairs and or remediation were false." (Demurrer, p. 5.) These facts are outside the four corners of the pleading and directly contradict Plaintiff's allegations in the Complaint. For example, Plaintiff alleges: "All testing and repairs performed in 2021-2022 were undertaken without the property owner's consent," and the defendants "perform[ed] unpermitted remediation . . ." (Compl. p. 6.) These facts must be taken as true for purposes of the demurrer. **OVERRULE.**

E. Intentional interference with contract (8th COA - Willhoit)

Preliminarily, as noted above, Defendants mislabel this claim as the 5th cause of action. (Demurrer, pp. 2, 6.) However, the intentional interference claims is alleged as the 8th cause of action in the Complaint.

The elements of this cause of action are: (a) a valid contract between plaintiff and a third party; (b) defendant's knowledge of this contract; (c) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (d) actual breach or disruption of the contractual relationship; and (e) resulting damage. (Witkin, *Summary 10th* (2005) Torts, § 731, p. 1058; *Pacific Gas & Elec. Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126; *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 55.)

Here, Plaintiff sufficiently alleges these elements. Plaintiff alleges (a) she and the Landlord were parties to a written lease agreement requiring refund of security deposit upon Plaintiff vacating the premises and a lease addendum requiring Landlord to pay Plaintiff \$5,000 as reimbursement for improvements on the property; (b) Willhoit's knowledge of the lease and addendum as broker, property manager and dual agent; (c) intentional acts to induce breach of the lease and the addendum "by instructing and persuading the Landlord not to issue the \$5,000 payment and not to refund Plaintiff's security deposit" unless Plaintiff signed a release; (d) Landlord breached the lease and addendum; and (e) Plaintiff suffered damages as a result. (Compl. p. 15-16.) These facts are sufficient.

Defendants argue Plaintiff fails to allege "intentional, independently wrongful conduct by Ms. Willhoit," but interference with an existing agreement need not be illegal or independently wrongful. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 55.) This is distinguished from a claim for interference with prospective economic relations, in which the plaintiff must show the means were "wrongful" by some measure other than the interference itself. (Ibid.) The case cited by Defendants - *Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134 - acknowledges this distinction as well. (Id. at 1158.) **OVERRULE.**

F. Violation of CLRA (11th COA - Willhoit, 10th COA - W Collection, 4th COA - Baron)

The CLRA prohibits a variety of specified unfair or deceptive acts "in a transaction intended to result or which results in the sale or lease of goods or services to any consumer." The purpose of the CLRA is to protect consumers against these acts and "to provide efficient and economical procedures to secure such protection." (*Civil Code § 1760; Wang v. Massey Chevrolet* (2002) 97 Cal.App.4th 856, 869.) A CLRA claim is considered to sound in fraud and must therefore be pleaded with particularity, as is true for fraud cases generally. (*Chamberlan v. Ford Motor Co.* (N.D.Cal. 2005) 369 F.Supp.2d 1138, 1144.)

Plaintiff alleges Defendants' broker and management services are "services" under the CLRA, and Defendants "misrepresented the quality, safety and condition of the leased property and concealed known hazards" in violation of *Civil Code §§ 1770(a)(5),(7) and (14)*. (Compl. at pp. 17, 19 and 26.)

Defendants argue the CLRA does not apply to residential leasing transactions or to real estate brokerages. "Services" is defined by the CLRA as "work, labor, and services for other than a commercial or business use, including services furnished in connection with the sale or repair of goods." (*Civ. Code § 1761, subd. (b).*) Under this definition, broker and management services relating to residential leasing transactions might be covered under the CLRA - although not entirely clear. Defendants cite to *Fairbanks v. Superior Court* (2009) 46 Cal.4th 1457, but that case held that life insurance is neither a

"good" nor a "service" within the meaning of the CLRA. (Id. at 60-61.) Defendants also cite to *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457 but that case held that the CLRA does not apply to mortgage loan transactions. (Id. at 1488.)

On the other hand, Plaintiff failed to oppose the motion, thereby conceding the issue. (*Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20; *DuPont Merck Pharmaceutical Co. v. Sup. Ct.* (2000) 78 Cal.App.4th 562, 566.) **SUSTAIN.**

G. Breach of implied warranty of habitability (13th COA – Willhoit, 12th COA – W Collection)

A warranty of habitability is implied in all residential rental agreements. (*Green v. Sup. Ct. (Sumski)* (1974) 10 Cal.3d 616, 629.) The implied warranty imposes upon the landlord the obligation to maintain leased dwellings in habitable condition throughout the term of the lease. (*Peterson v. Sup. Ct. (Banque Paribas)* (1995) 10 Cal.4th 1185, 1204.) This implied warranty is a corollary to the landlord's statutory obligation to put the premises "into a condition fit for such [residential] occupation, and repair all subsequent dilapidations thereof, which render it untenable." (*Civ. Code* § 1941.)

Plaintiff alleges Defendants acted as the property manager and broker, and thus had control over the habitability and repair decisions for the property. (Compl. at pp. 17-18, 23.) As pointed out by Defendants, however, the duty is imposed on the landlord, not the property manager. Plaintiff failed to oppose the motion, thereby conceding the issue. (*Herzberg v. County of Plumas, supra*, 133 Cal. App. 4th at 20.) **SUSTAIN.**

H. Public and private nuisance (17th COA – Willhoit, 16th COA – W Collection, 7th COA – Baron)

The elements of an action for private nuisance are: (1) interference with use and enjoyment of property; (2) that is substantial, i.e., that causes the plaintiff to suffer "substantial actual damage"; and (3) that is unreasonable. (*San Diego Gas & Electric Co. v. Super. Ct.* (1996) 13 Cal.4th 893, 938.) "[A] plaintiff bringing a cause of action for private nuisance must show harm to a property interest." (*Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 402.)

"A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal." (*Civ. Code*, § 3480.) A private plaintiff may bring a cause of action for public nuisance if the nuisance is "specially injurious" to the plaintiff. (*Civ. Code*, § 3493.)

Here, Plaintiff argues Defendant maintained and failed to abate toxic mold and asbestos contamination, interfering with Plaintiff's comfortable enjoyment of life and property and endangered health and

safety. (Compl. at pp. 19, 24, 27.) These facts might be sufficient to allege private nuisance, but not public nuisance. Plaintiff alleges no facts establishing any interference with a public right or any injury affecting the public at large. **SUSTAIN** to the extent Plaintiff alleges public nuisance.

II. Motion to Strike

The court may, upon a motion made pursuant to *Code of Civil Procedure* section 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(*Code of Civ. Proc. § 436.*) Motions to strike can be used to attack the entire pleading, or any part thereof. (*Code of Civil Procedure* section 435; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (*Code of Civ. Proc. § 436, subd. (a).*) "[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, fn. 2.)

A motion to strike is the proper vehicle to attack a claim for punitive damages. (*Code of Civ. Proc. §§ 435-436; Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (*Civ. Code § 3294, subd. (a).*)

Defendants move to strike punitive damages. However, fraud and fraudulent concealment are alleged against each of the defendants. (Compl. at pp. 14, 20-21, 25, 28-29.) A properly pleaded fraud claim will itself support recovery of punitive damages. No allegations of "malice" or intent to injure plaintiff are required, because fraud is an alternative basis for recovery. (*Stevens v. Sup. Ct. (St. Francis Med. Ctr.)* (1986) 180 Cal.App.3d 605, 610.) Here, Defendants do not challenge the fraud causes of action in the demurrer or in the motion to strike, thereby conceding they are properly alleged. **DENY.**

Counsel for Defendants shall give notice of this ruling.

8. Millen v. General Motors
LLC
26-1554736

Before the Court is Demurrer and Motion to Strike filed by General Motors, LLC (GM) as to the Complaint filed by plaintiff, Jared Millen. The Demurrer is **SUSTAINED**, with 14 days leave to amend and the Motion to Strike is **DENIED**.

Demurrer

The role of a demurrer is "to test the legal sufficiency of a complaint." (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994, citations omitted.) A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

7th Cause of Action: Fraud by Omission: Plaintiff has failed to plead sufficient facts to state a cause of action. (*Code of Civ. Proc. §430.10*; *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [elements]; *Cansino v. Bank of Am.* (2014) 224 Cal.App.4th 1462, 1469. [specificity required for fraud]; see also, Complaint ¶¶71-75 [allegations that dealer concealed material facts at time of sale insufficient.])

As to the fraud by omission cause of action, there are no allegations as to GM. Instead, the allegations are as to conduct by Connell. It appears the fraud allegations are entirely related to the upselling of an aftermarket device by Connell. Plaintiff alleges that by Connell installing the aftermarket device, such could be considered "tampering" which would result in denial of warranty coverage. However, there is no allegation GM was involved in the upselling.

Accordingly, the demurrer is **SUSTAINED**, with 14 days leave to amend.

8th Cause of Action: Unfair Competition: Plaintiff has failed to plead sufficient facts to state a cause of action. (*Business & Prof. Code, §17200*; *Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal. 4th 163, 180 [elements]; See also Complaint ¶¶79-84 [no specific facts pled as to GM]; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619 - "A plaintiff alleging unfair business practices under [the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation.")

Motion to Strike

A party may move to strike a pleading pursuant to *Code of Civil Procedure section 435*. In turn, *Code of Civil Procedure section 436* provides that a court may strike (a) "any irrelevant, false, or improper matter" in a pleading, or strike (b) all or any part of a pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court."

According to the notice of motion, GM moves to strike: "the following from the Complaint by Plaintiff Jared Millen: 'the demand for 'punitive damages' in the Complaint.'" (Complaint, p. 16:7-9.)" (Notice of Motion at 1:25-26)

Page 16, lines 7-9 of the complaint states: "PLAINTIFF PRAYS for judgment against Defendants Connell and Doe 1 as follows: ... i.

		Upon the expiration of 30 days after the notice required by <i>Civil Code § 1782(a)</i> is given, for punitive damages pursuant to <i>Civil Code § 1780(a)(4)</i>" Because GM lacks standing to challenge the claims made against Connell, the motion is DENIED. <i>GM is ordered to give notice of this ruling.</i>
9.	Bush v. California Cemetery and Funeral Services, LLC 24-1438792	Before the Court is a motion for summary judgment or in the alternative, summary adjudication filed by defendant SCI Shared Resources, LLC (Defendant or SCI Shared) on the Complaint of plaintiff Kesaia Bush (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. The new evidence submitted with the reply is untimely and not considered. (<i>Code of Civ. Proc. § 437c, subd. (b)(4).</i>) Defendant's request for judicial notice is GRANTED. (<i>Evid. Code § 452, subd. (d).</i>) Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objections to the declaration of Sandy T. Luu and Kesaia Bush are SUSTAINED as to nos. 1, 2, 38-42 based on relevance and OVERRULED as to nos. 3-37. The Court declines to rule on Defendant's other "evidentiary" objections, which are procedurally improper. Written objections must go to specific evidence, not facts stated in the separate statement or response to separate statement. (<i>Cal. Rules of Court, rule 3.1354(b).</i>) Plaintiff alleges SCI Shared is jointly liable with defendant California Cemetery and Funeral Services, LLC (CCFS) as her employer. (Compl. ¶¶ 5, 7.) On July 2, 2026, the Court granted CCFS' motion for summary judgment, finding that Plaintiff failed to meet her shifted burden to show a triable issue of fact as to CCFS' liability. The Court grants SCI's motion for summary judgment for the same reasons it grants CCFS' motion. (ROA 244.) 1st and 2nd causes of action (discrimination and retaliation) For summary judgment purposes, "[i]n an employment discrimination case, the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors." (<i>Hicks v. KNTV Television, Inc.</i> (2008) 160 Cal.App.4th 994, 1003; <i>Cornell v. Berkeley Tennis Club</i> (2017) 18 Cal.App.5th 908, 926.) "If the employer meets its initial burden in this manner, the plaintiff then has the burden to produce 'substantial evidence that the employer's stated nondiscriminatory reason for the adverse action was untrue or pretextual, or evidence the

employer acted with a discriminatory animus, or a combination of the two, such that a reasonable trier of fact could conclude the employer engaged in intentional discrimination.” (*Hicks v. KNTV Television, Inc.*, *supra*, 160 Cal.App.4th at 1003; see also *Deschene v. Pinole Point Steel Co.* (1999) 76 Cal.App.4th 33, 44 [the plaintiff must provide “specific, substantial evidence of pretext”].)

Here, Defendant produced evidence that Plaintiff’s employment was terminated because Plaintiff was on an extended absence without approved leave, *i.e.*, Plaintiff failed to submit medical documentation to support her request for pregnancy disability leave as required under Defendant’s policies. (Defendant’s Separate Statement of Undisputed Material Facts (“DSS”) 4-19, 26.) Defendant met its burden showing a legitimate, nondiscriminatory reason for Plaintiff’s termination.

The burden shifted to Plaintiff, but Plaintiff failed to produce sufficient evidence that Defendant’s stated reason for termination was pretextual or Defendant otherwise acted with discriminatory animus.

Plaintiff’s argues pretext is shown by Defendant’s violation of 12 of its own policies. It is true “an employer’s failure to follow its own policies and procedures” supports an inference of pretext. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 239.) Here, however, the evidence produced by Plaintiff fails to show Defendant violated its policies. Rather, the undisputed evidence and a review of the policies cited by Plaintiff show there was no obligation imposed on Defendant, or the obligation was not triggered and/or excused by Plaintiff’s own noncompliance. (Plaintiff’s Additional Material Facts (“AMF”) 67-78; see also DSS and Response to DSS 7-11, 22, 26; Declaration of Jeffrey J. Gordon (“Gordon Decl.”), Ex. 3 at p. 391.)

Plaintiff next argues that Defendant’s paperwork contains inconsistencies regarding Plaintiff’s employment status during her leave of absence. A triable issue as to the employers’ credibility may arise where the employer has given “fundamentally different justifications” for its action. (*Reeves v. MV Transp., Inc.* (2010) 186 Cal.App.4th 666, 677.) The evidence produced by Plaintiff fails to show the inconsistencies constitute “fundamentally different justifications” for the termination. Rather, they only reflect minor miscommunication between Defendant and third-party administrator and/or immaterial differences in wording. (Plaintiff’s AMF 54-55, 81-82.)

Plaintiff argues a male employee was treated differently and more favorably because he was offered reinstatement. Pretext may be proven through “comparative evidence,” *i.e.*, evidence that the employer treated similarly situated person in similar circumstances more favorably than it treated plaintiff. (*McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, 804.) The undisputed evidence shows, however, that Plaintiff was provided the same offer as the male colleague – reinstatement with the requested documentation. (Gordon Decl., Ex. 2 at pp. 181-182; see also Bush Decl., ¶ 36.) Plaintiff failed to produce any evidence she ever provided medical document to

support her leave, either before or after termination, or that she ever sought reinstatement. (DSS 10-23; Response to DSS 10; see also Gordon Decl., Ex. 2 at pp. 181-182, 200.) Plaintiff failed to show she was treated differently.

In sum, Plaintiff failed to meet her burden to provide "specific, substantial evidence of pretext" from which a reasonable trier of fact could conclude that the explanation offered by Defendant for Plaintiff's termination was not credible. (*Deschene v. Pinole Point Steel Co.*, *supra*, 76 Cal.App.4th at 44.) The motion is therefore **GRANTED** as these causes of action.

4th and 5th causes of action (reasonable accommodation and interactive process)

The FEHA imposes on the employer the obligation "to make reasonable accommodation for the known physical or mental disability" of an employee to enable him or her to perform a position's essential functions, unless doing so would produce undue hardship to the employer's operations. (*Gov. Code § 12940, subd. (m)*; *Cal. Code Regs., tit. 2, § 11068(a)*; *Fisher v. Sup. Ct. (Alpha Therapeutic Corp.)* (1986) 177 Cal.App.3d 779, 783.) In addition, FEHA requires the employer to engage in a "timely, good faith interactive process with the employee . . . to determine effective reasonable accommodations, if any, in response to response to a request for reasonable accommodation by an employee . . . with a known physical or mental disability of known medical condition." (*Gov. C. § 12940, subd. (n)*.)

FEHA regulations provide that the employer has the obligation to initiate the interactive process 1) if an employee with a known disability or medical condition requests reasonable accommodation or 2) the employer otherwise becomes aware of the need for an accommodation through a third party or by observation. (*Cal. Code Regs., tit. 2, § 11069, subd. (b)*.) A request for finite leave is a request for accommodation. (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 377-378; *Cal. Code Regs., tit. 2, § 11068, subd. (c)*.)

The employee has the obligation to "cooperate in good faith with the employer . . . including providing reasonable medical documentation where the disability or the need for accommodation is not obvious and is requested by the employer." (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(5)*.) "Reasonable medical documentation confirms the existence of the disability and the need for reasonable accommodation." (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(1)*.) If the medical documentation is insufficient, no reasonable accommodation is required. (*Cal. Code Regs., tit. 2, § 11069, subd. (d)(6)*.)

Defendant produced evidence Plaintiff requested accommodation for an alleged pregnancy disability by requesting a leave of absence, Defendant requested medical certification to support the leave request, but Plaintiff failed to provide any medical documentation despite repeated requests. (DSS 10-21.) Based on Plaintiff's failure to cooperate, Defendant met its burden that it had no further obligation

to engage in the interactive process or provide reasonable accommodation.

The burden shifts to Plaintiff to produce evidence showing a triable issue of fact. Plaintiff argues she was physically unable to engage in the interactive process, which cannot be held against her pursuant to *Cal. Code Regs., tit. 2, § 11069, subd. (d)(3)*. (AMF 49.) The evidence does not show, however, that Plaintiff lacked the mental or physical ability to obtain the doctor's note. Indeed, Plaintiff claims she was unable to obtain the medical certification because her doctor refused to provide it despite Plaintiff's repeated requests at her OB appointments. (Response to DSS 10, 12; Plaintiff's AMF 44; see also Bush Decl. ¶ 21.) Thus, Plaintiff's inability to obtain the doctor's note was not caused by Plaintiff being physically unable to do so – it was because her doctor did not find her morning sickness to be severe enough to warrant accommodation.

Plaintiff next argues that Defendant had "at least five concrete mechanisms to resolve the certification obstacle" based on its own policies and Defendant "used none." (Opposition, p. 14.) These arguments fail for the same reasons set forth above: Plaintiff failed to show Defendant violated any of its policies.

To the extent Plaintiff argues her physical disability was so "obvious" that no documentation was necessary, Plaintiff failed to submit sufficient evidence of an obvious physical disability or the need to take an extended leave of absence. Plaintiff produced evidence her coworkers and supervisor may have observed Plaintiff suffer from morning sickness, but only a healthcare provider can determine whether she suffered from "severe morning sickness" requiring two months' leave. (AMF 24-27; see also Plaintiff's Compendium of Evidence, Ex. 2.) Notably, her own doctor did not believe her morning sickness was severe enough to warrant medical certification. (Response to DSS 10, 12; Plaintiff's AMF 44; see also Bush Decl. ¶ 21.) If her own doctor did not find her condition to be "obvious" enough for an extended leave of absence, it would be unreasonable to expect her medically untrained coworkers and supervisors to find her condition "obvious" so as to excuse Plaintiff from providing a doctor's note.

Plaintiff failed to meet her burden showing a triable issue of fact as to Defendant's obligation to provide reasonable accommodation and/or further engage in the interactive process. The motion is therefore *GRANTED* as these causes of action.

3rd and 6th causes of action (failure to prevent and wrongful termination)

These claims are derivative of Plaintiff's other disability discrimination claims, and fail for the same reasons. (*Trujillo v North County Transit* (1998) 63 Cal.App.4th 286-88 [in general, there can be no failure to prevent discrimination if there are no successful discrimination claims; *City of Moorpark v. Sup. Ct. (Dillon)* (1998) 18 Cal.4th 1143,

		1161[FEHA disability discrimination may form the basis of a common law claim for wrongful termination against public policy].) The motion is therefore GRANTED as these causes of action. <u>Punitive damages</u>: Based on the Court's ruling on the motion as to all of Plaintiff's claims, Defendant's argument as to punitive damages is moot. <i>Counsel for Defendant shall give notice of this ruling.</i>
10.	Tapia v. Regents of the University of California 24- 1446222	: Before the Court is the continued hearing on the Motion for Reconsideration and Relief from Terminating Sanctions, etc., filed on 3/17/26 by Plaintiff Melissa Tapia in her individual capacity and in her capacity as decedent Luis Recinos' successor-in-interest ("Plaintiff"). The Motion is effectively a motion for relief under <i>C.C.P. § 473(b)</i>, based upon an attorney declaration of fault regarding discovery violations that resulted in terminating sanctions. In that context, the application for mandatory relief would be in proper form if it demonstrated that verified discovery responses had been served, for all of the outstanding discovery. (See <i>Rodriguez v. Brill</i> (2015) 234 Cal.App.4th 715, 729.) Plaintiff's counsel asserted in the Motion only that compliance was anticipated. (ROA 225, Smith Decl., ¶ 19.) Plaintiff then belatedly submitted some responses, but failed to file any reply or declaration demonstrating that this had occurred. In light of claims made by Plaintiff's counsel, the Motion was continued to 7/2/26. Counsel for both sides were directed to file a Joint Statement by 6/26/26, along with any "individual declarations." The "Joint Statement" filed on 6/26/26 addresses what Defendant Regents of the University of California ("Regents") perceived to be defects in the responses, while Plaintiff's counsel asserted that the responses overall reflect substantial compliance. But at that time, the only copies of the belated responses that were presented to the Court were those attached to the Leaf Decl. at Exs. 1-6, which showed only unverified responses, and thus did not demonstrate substantial compliance. On 7/2/26, an additional continuance was granted to allow Plaintiff to supplement again. Plaintiff has now shown, in ROA 250, that verifications were provided, and that further supplementation was also provided to address issues in the earlier responses. In light of that showing, the Motion is GRANTED as to the 3/2/26 Order (with regard to the terminating sanction and dismissal, but not as to the monetary sanctions imposed at the time). The Judgment entered on 4/8/26 is therefore VACATED. A Case Management Conference is set for TBA. In accordance with <i>C.C.P. § 473(b)</i>, Plaintiff's counsel, Smith Clinesmith, LLP, is to pay \$9,915 to Regents for reasonable compensatory legal fees and costs incurred by Regents due to Plaintiff's counsel's attorney errors, as addressed in this Motion. <i>Counsel for Regents is to give notice of this ruling.</i>

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